

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: November 17, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

**ORDER GRANTING IN PART COMPLAINANT’S SECOND MOTION FOR ENLARGEMENT OF TIME
AND ORDERING JOINT STATUS REPORT**

Complainant Samsung Electronics America, Inc. (“SEA”), filed its Second Motion for Enlargement of Time on September 30, 2025 (“2d MET”). Complainant asks for an extension of the discovery deadlines and other procedural deadlines by 30 days. (2d MET, at 7). Complainant makes its motion due to, among other things, voluminous documents to be produced, as well as discovery disputes that have arisen. (2d MET, at 4-6). Complainant also states that Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively “OOCL”), filed an Amended Counterclaim and Amended Third Party Complaint, that motions to dismiss regarding OOCL’s claims are pending, and that a coordinated schedule amongst all the claims would be ideal. (2d MET, at 6-7).

In Respondents’ Partial Opposition to Complainant’s Second Motion for Enlargement of Time (“2d MET Opp.”), which was filed October 7, 2025, OOCL argues that SEA has not shown good cause for extending discovery, and that OOCL would be prejudiced by such an extension. (2d MET Opp., at 3-7). OOCL agrees with SEA to the extent that this proceeding should be stayed pending the outcome of the motions to dismiss OOCL’s claims. (2d MET Opp., at 7).

The 2d MET is **GRANTED in PART**. The Amended Scheduling Order issued August 5, 2025, provides that all discovery is to close December 1, 2025, and dispositive briefing is to commence January 9, 2026; it appears that these dates are no longer feasible.

Before I issue a revised amended scheduling order, however, it is necessary to know the status of this matter. Accordingly, the parties are **ORDERED** to file a joint status report no later than **December 1, 2025**, along with a proposed amended schedule. The parties should be mindful, however, that the deadline for issuing an initial decision in this matter is March 30, 2026, and that this matter has been pending since March 28, 2024. Therefore, the parties are expected to work expeditiously towards completing discovery in this matter as soon as practicable. Further, the longer the parties seek to extend discovery, the more the parties will need to justify their requested discovery extension with specific facts.

I will issue orders regarding the outstanding motions to dismiss in the near future.

Richard C.
Ambrow Jr -S



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Richard C. Ambrow Jr -S
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Richard Ambrow
Administrative Law Judge